

M/s Gogi Ice & Cold Storage v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 22 December 2015 · Writ-C No. 33464 of 2009 · **Writ dismissed; relegated to clause 7.10 statutory remedy.**

HEADNOTE

Writ against DVVNL dismissed. The consumer must first exhaust the statutory remedy under clause 7.10 of the Electricity Supply Code, 2005. Any interim order stands discharged.

FACTUAL SUMMARY

M/s Gogi Ice & Cold Storage invoked the Allahabad High Court's writ jurisdiction against Dakshinanchal Vidyut Vitran Nigam Ltd. in 2009. On 27 October 2010 a Division Bench allowed three weeks for a rejoinder and listed the petition thereafter. When the matter was taken up on 22 December 2015, counsel for the licensee submitted that the petitioner had a statutory alternative remedy under clause 7.10 of the Electricity Supply Code, 2005. The Court did not try the underlying electricity dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative statutory remedy

HOLDING

A writ against the distribution licensee is dismissed where clause 7.10 of the Electricity Supply Code, 2005 affords a statutory alternative remedy, which the consumer must pursue first; any interim order stands discharged. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S SUPPLY OR BILLING GRIEVANCE AGAINST DVVNL

Writ dismissed solely because clause 7.10 affords an alternative statutory remedy. ¶ 1